

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/26/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL 2101418

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: KIRSTEN TOLSTRUP

and

RESPONDENT: MASSOUD AKHTARI

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – SPOUSAL SUPPORT

RULING

This matter is set for hearing on Petitioner/Wife's 4/6/2026 Request for Order ("RFO") to terminate the spousal support she pays Respondent/Husband of \$5,000/month.

The Court notes that Wife has not complied with Marin County Local Rule, Family 7.8(F), which requires the parties to submit an Address Verification Declaration (Local Form FL070). Without the Address Verification, the Court has no way of knowing if Respondent/Husband was properly served. Therefore, the Court orders as follows:

1. Wife shall comply with Marin County Local Rule, Family 7.8(F) forthwith.
2. The matter is continued for hearing to 8/14/2026 at 9:00 am in Department E to provide Wife with sufficient time to confirm Husband's address, serve him, and to provide Husband sufficient time to respond.

SO ORDERED.

The Court will prepare the order.

*Any party who disagrees with the Court's tentative ruling and wishes to have oral argument must notify the Court at (415) 444-7046 and opposing counsel (or if the opposing party is self-represented, notice must be given directly to the opposing party) of their intent to appear at the hearing for oral argument **by 4:00 pm on the court day before the hearing**, as required by Marin County Superior Court Family Law Local Rules 7.12(B) and (C). Notice may be given by telephone or in person. Absent proper notice, no oral argument will be permitted. If no request for oral argument is made, the tentative ruling will become the order of the Court.*

Unless otherwise ordered by the Court, persons who requested oral argument must appear for the hearing in person or remotely via Zoom, in accordance with the Comi website guidelines. If appearing remotely via Zoom (video or telephone), you are responsible for ensuring you have adequate connectivity; the Court may proceed in a party's absence if technical issues arise. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person being made.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/26/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL 2102370

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: SHIRLEY SANTA ROSA

and

RESPONDENT: BRIAN ERIC NORRIS

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – ENFORCE JUDGMENT; TERMS OF MSA

RULING

This matter is set for hearing on Petitioner/Wife's 5/15/2026 Request for Order ("RFO") re: enforcement of Judgment. Together with the RFO and supporting Declaration Wife filed a Memorandum of Points and Authorities. Wife states that the parties signed a Marital Settlement Agreement ("MSA"), which was incorporated into the Judgment of Dissolution entered on 2/6/2026. According to Wife, Respondent/Husband's Schedule of Assets & Debts showed a community debt owing on a Capital One credit card of \$54,600.03; however, that liability was not included in the parties' MSA. Wife asks the Court to enforce the settlement agreement as is and order that the Capital One debt is Husband's separate obligation. Alternatively, Wife requests the Court to reopen allocation of all marital credit card debts so they can be equitably addressed. Wife further seeks attorneys' fees and costs per Family Code §§ 271, 2030 and 2032.

Husband filed a Responsive Declaration on 6/12/2026 opposing Wife's request. He states the Capital One debt was not used for his personal benefit; it was used during the marriage for the parties' community business, Basti, Inc., and both parties received the benefit of the debt. Due to nonpayment, Capital One put a lien on the parties' residence, and the lien was paid from the sales proceeds when the residence was sold. Husband acknowledges the debt was not identified in the MSA but was inadvertently omitted, but its omission should not mean it automatically becomes his separate property obligation. Husband argues that the debt should be treated as an omitted liability per Family Code § 2556 and evenly divided. Husband suggests that, alternatively, if the Court believes further analysis of required regarding the parties' credit card obligations, it should appoint an Evidence Code section 730 expert to determine proper allocation of the credit card debt. Husband also asks that Wife's request for attorneys' fees be denied.

First, the Court will not reopen the issue of the allocation of all of the parties' credit card debts. There is one credit card debt that is in dispute, and it is the only issue the Court will address. Second, the Court needs more information to address the issue at hand.